STANDARD OPERATING PROCEDURE			G-10210
	SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA **GREG LONDON** **SHERIFF**	DATE ISSUED 08/08/08	DATE REVISED **06/14/21**	DATE REVIEWED 02/02/25
		APPROVED: *GREG LONDON*		
CHAPTER TITLE GENERAL	RESOURCES			
SUBJECT ASSET SEIZURE	CROSS REFERENCE I-6200 EVIDENCE AND PROPERTY P-3230 IN-CAR AUDIO/VIDEO RECORDING SYSTEM			

I. Purpose:

The purpose of this policy is to establish the guidelines for the seizure of assets, specifically U.S. currency, when believed to be in connection to criminal activities.

II. Policy:

The Sarpy County Sheriff's Office shall establish procedures for the seizure of assets, specifically U.S. currency, when those assets have been determined to be related to a criminal activity. The Sheriff's Office shall employ the seizure of assets and their ultimate forfeiture in a manner that enhances public safety and security. This is accomplished by removing the proceeds of crime and other assets relied upon by criminals and their associates to perpetuate their criminal activity against society. All asset forfeiture proceedings shall be coordinated by the Narcotics Unit. Currency (less than $5,000) or property taken incident to a lawful arrest shall be handled in accordance with procedures established in I-6200 Evidence and Property but may require coordination with the Narcotics Unit if forfeiture is sought.

III. Procedure:

A. Deputy Responsibilities-Encounters with Large Amounts of Currency: If during the course of a traffic stop or investigation, a deputy encounters U.S. currency in excess of five thousand (5,000) dollars (the Federal Asset Forfeiture Threshold), he or she shall adhere to the following procedures.

1. Deputies, generally, shall not count large amounts of currency at the scene of an investigation or at the scene of a traffic stop unless doing so is required to determine if the amount exceeds the five thousand (5,000) dollar threshold. If the deputy must count currency to determine the threshold amount, he or she shall only do so in the presence of another law enforcement officer and, if possible, in the view of an in-car video recording system.

2. Deputies shall determine if the currency may be related to a criminal activity. The following would indicate the potential relationship to criminal activity:

a) A trained narcotics K-9 indicates the presence of a controlled substance on or near the currency.

b) The party possessing the currency has no explanation regarding the currency or the explanation is not reasonable.

c) Parties possessing the currency have conflicting stories regarding the currency.

d) The party(s) possessing the currency disavows any knowledge of the currency.

e) The party(s) is arrested for a crime for which the currency may be proceeds.

3. If the deputy determines the currency may be related to a criminal activity, he or she shall:

a) Seize the currency (see section B. Currency Seizure Procedures below). If possible, the currency should be photographed in its original location (e.g. in the vehicle).

b) Notify his or her supervisor. The supervisor shall notify the on-duty watch commander or ADC.

c) Request the party(s) possessing the money complete a Disclaimer of Ownership form.

d) The deputy shall determine if the individual(s) is to be arrested, brought to the Sarpy County Sheriff's Office for further questioning, or released.

(1) If the individual(s) is arrested, the deputy shall take all appropriate steps regarding the arrest and tow (if appropriate), and he or she shall notify a narcotics investigator regarding the currency seizure.

(2) If the individual(s) is currently not under arrest but further investigation/interview is necessary or a vehicle requires a more thorough search, the individual(s) shall be transported to the Sarpy County Sheriff's Office, the vehicle shall be towed to the Sarpy County Tow Lot, and a narcotics

investigator shall be notified to assist with the investigation/interview.

(3) If the individual(s) is to be released without arrest or further investigation/interview, he or she shall be satisfactorily identified prior to release and the deputy shall complete an incident report.

(a) If the individual(s) does sign the Disclaimer of Ownership form, the individual will not be provided a receipt for the currency seized.

(b) If the individual(s) refuses to sign the Disclaimer of Ownership form and he or she wishes to have a receipt issued for the seized currency then he or she must do so at the Sarpy County Sheriff's Office during normal business hours with the ADC. Receipts shall not be issued at the scene of a traffic stop or investigation.

B. Currency Seizure Procedures: The following procedures shall be adhered to when seizing currency in excess of five thousand (5,000) dollars.

1. The deputy responsible for the traffic stop or investigation shall be responsible for the initial seizure and securing of the currency. This shall be done in the presence of at least one other law enforcement officer.

2. If the seizure takes place as a result of a traffic stop, the deputy responsible for the seizure shall adhere to the following procedures.

a) The deputy shall bring all seized currency to the hood of the patrol vehicle while the in-car audio/video recording system is recording (see P-3230 In-Car Audio/Video Recording System). All currency shall be placed in evidence bags and sealed with red evidence tape across the opening of the bag in clear view of the in-car recording system. If the amount of currency makes it impractical to place in evidence bags, the currency shall be wrapped in red evidence tape in such a manner to prevent tampering.

b) Once the currency is sealed, it shall be placed in the trunk/cargo area of the patrol vehicle. This shall be done in the presence of at least one other law enforcement officer.

c) The deputy shall proceed to the Sarpy County Sheriff's Office with the currency. The deputy shall ensure that the in-car recording system is recording the interior of the patrol vehicle.

d) The deputy shall request a deputy meet him or her at the Sarpy County Sheriff's Office (this may be arranged with the Narcotics Unit, the Investigations Division, or other division). Upon arriving at the Sarpy County Sheriff's Office, the deputy shall wait for another deputy to meet him or her prior to removing the currency from the patrol vehicle. The audio/video recording shall be logged into evidence (see P-2413 In-Car Audio/Video Recording System). The deputy logging the video shall note on the Evidence/Property form that the video is regarding an asset seizure.

(1) If the seizing deputy is responsible for conducting a search of the vehicle involved, then he or she shall request two deputies meet him or her at the Sarpy County Sheriff's Office and the currency shall be placed in their custody.

3. If the seizure takes place at the scene of an investigation, the deputy responsible for the seizure shall adhere to the following procedures.

a) The deputy responsible for the seizure shall remain with the currency at all times, and shall request a second deputy accompany him or her at all times.

b) All currency shall be placed in evidence bags and sealed with red evidence tape across the opening of the bag in clear view of the in-car recording system. If the amount of currency makes it impractical to place in evidence bags, the currency shall be wrapped in red evidence tape in such a manner to prevent tampering. If possible, this process should be recorded.

c) If available, the currency may be transported to the Sarpy County Sheriff's Office in a patrol vehicle equipped with an in-car audio/video recording system (see section B, 2 above).

d) If a patrol unit is unavailable, the currency shall be transported to the Sarpy County Sheriff's Office by both deputies assigned to maintain custody of the currency.

4. Counting Procedures: The on-duty watch commander or ADC shall direct the two employees (may include sworn personnel, criminalistic technicians, or property clerks) to count the currency at the Sarpy County Sheriff's Office or take it to a financial institution.

a) If the currency is to be counted at the Sarpy County Sheriff's Office, the two employees shall independently count the currency while observed by the other employee. Both employees shall count the currency twice to ensure an accurate count. If a total is agreed upon, the currency shall be placed into evidence. If discrepancies

arise, the currency shall be taken to a financial institution. A supervisor or command officer shall be present during the counting process.

b) If directed to take the currency to a financial institution, two deputies shall travel together to the location and stay at the financial institution until the currency is counted. The financial institution shall issue the Sarpy County Sheriff's Office a cashier's check for the amount and the check shall be placed into evidence.

C. **Asset Forfeiture:** The Sarpy County Sheriff's Office Narcotics Unit shall be responsible for the asset forfeiture process for all seized property related to criminal activity. Deputies seizing assets (e.g. currency, vehicles, etc.) believed to be related to criminal activity are responsible for notifying the Narcotics Unit as soon as practical after the seizure.

1. Each asset forfeiture case shall be assigned to Narcotics Supervisor. The Narcotics Supervisor or his or her designee shall be responsible for conducting any required follow-up investigation to determine the relationship between the seized asset(s) and any criminal activity. This may include, but is not limited to, further interviews, coordination with outside agencies, conducting a controlled delivery of the asset(s), etc.

2. The Narcotics Supervisor shall determine if the asset forfeiture will be conducted through the state or the federal government. The narcotics investigator may coordinate with the Sarpy County Attorney's office to make this determination.

3. If the asset forfeiture is to be adopted by a federal agency, the Narcotics Supervisor shall be responsible for completing the federal request for adoption form and providing the appropriate federal agency with all related reports.

4. After a case has been adopted by a federal agency, all questions regarding the assets should be directed to the appropriate federal contact.